

After recording return to:

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**DECLARATION OF COVENANTS, RESTRICTIONS, RESERVATIONS and
BYLAWS**

OF

TWIN PEAKS VILLAGE HOMEOWNERS' ASSOCIATION

This Declaration of Covenants and Restrictions, Reservations and Bylaws, including grants of easements and reservation of right to grant easements, and made this ____ day of _____ 2026 by Echo Lake Investments, LLC, a New Hampshire limited liability company with an address of 12 Wheeler Road, Lexington, Massachusetts 04240, (hereinafter called "Declarant"). The Declarant hereby covenants, for itself and for its successors and assigns, that the conveyance to an Owner of any Lot, as defined herein, shown on a subdivision plan recorded in Coos County Registry of Deeds, by acceptance of a deed therefor, whether or not it shall be so expressed in any such deed or other conveyance, shall be subject to and bound by this the terms and conditions of this Declaration.

By virtue, hereof, the "Declaration of Covenants, Restrictions, Reservations and Bylaws of Echo Lake Subdivision Homeowner's Associations, dated July 25, 2022 and recorded in Coos County Registry of Deeds ("CCRD") on August 17, 2022 at Book 1608, Page 506 is hereby terminated effective that date when a grant of easements now recorded in CCRD at Book 1607, Page 7223 and at Book 1607, Page 719 are recorded in CCRD. All obligations and duties and rights of the Echo Lake Subdivision Homeowner's

Association contained thereon are assumed by the Twin Peaks Village Homeowners' Association subject to the provision that where a conflict exists in the two documents, the terms contained herein shall be controlling.

Article I

DEFINITIONS:

The following words when used in this Declaration or any amendment thereto, (unless the context shall prohibit) shall have the following meanings:

DECLARANT: Echo Lake Investments, LLC, a New Hampshire limited liability company with an address of 12 Wheeler Road, Lexington, Massachusetts 04240.

LOT: A residential Lot in the Property shown on a Plan (as the term is defined herein) recorded in Coos County Registry of Deeds.

LOT IDENTIFICATION CHART: See chart at Exhibit G showing all the Lots, identified by as follows: Phase 1 Lots are identified by Tax Map Number and Tax Parcel Number; Phase 2 Lots are identified by Tax Map Number and Plan Lot Number. See Plan entitled, "ECHO LAKE INVESTMENTS, LLC 'TWIN PEAKS VILLAGE' 233 Route 3 South, Carroll, New Hampshire, EASEMENT PLANS, ASSESSORS MAP 206 LOTS 53, 58, 58.1, 58.2, 58.3, 58.4, 58.5, 58.6, 58.7 AND 58.8 Coos County Registry of Deeds Book 1430, Page 367".

PROPERTY: The Property is comprised of 27 residential building lots located on the southern side of U.S. Rte. 3 in Village of Twin Mountain, Town of Carroll, County of Coos and State of New Hampshire in Phase I and Phase II, together with the land encompassing Solar Spring Circle and certain other land which are not building lots; all being a portion of land granted to Declarant by deed recorded in Coos County Registry of Deeds ("CCRD") at Book 1430, Page 367; all as shown on the Plans.

RESIDENTIAL NATURE OF LOTS: On six (6) of the 27 lots only single-family homes will be built of no more than 2,000 sq. ft. GLA. On the remaining twenty-one (21) lots, either single-family homes or duplexes may be built.

TWIN PEAKS VILLAGE (aka "Village"): The 27 lots comprising the Property, with any dwellings and improvements thereon, together with the Common Elements.

OWNER: Owner shall mean and refer to the record owner of a Lot. Notwithstanding any applicable theory of mortgage, "Owner" shall not mean or refer to a mortgagee unless and until such mortgagee has acquired fee simple title pursuant to foreclosure or any proceedings in lieu of foreclosure.

HOA: The Homeowner's association (HOA) shall have the responsibility to inspect, maintain and repair the stormwater BMPs (I&M Responsibilities), pursuant to NH Env-W 1507.07, and inclusive of the tasks in the Inspection and Maintenance Manual for surface and stormwater management system attached as **Exhibit H**. The Twin Peaks Village Homeowners' Association ("HOA"), is a non-profit association comprised of the 27 residential lots in the Phase I and Phase II Subdivisions, which HOA has the responsibility and authority to (a) inspect, maintain, repair and replace as needed the Common Elements of the Twin Peaks Village Subdivision, (b) assess charges against each of the 27 Lots to fund its duties and responsibilities, all as further described herein and in the Bylaws of the HOA and (c) access any part of the Property, including individual Lots, and driveways thereon, maintenance access easements, pond, drainage, slopes and other easement areas within the Property to inspect, maintain, repair and replace the Common Elements, which right of access shall include the right to pass over the lots with men and machines and vehicles, and to stockpile replacement parts and material to fulfill its duties, provide disturbed areas are reasonably reclaimed after the work is completed.

NH Env-Wq 1507.07:

(a) In order to ensure the long-term effectiveness of approved stormwater practices, the applicant shall establish a mechanism to provide on-going inspections and maintenance (I&M) of the practices for so long as the practices are reasonably expected to be used.

(b) Subject to (f), below, the mechanism shall include an I&M manual for the practices which includes, at a minimum:

- (1) The name of each responsible party who will implement the required reporting, inspection, and maintenance activities identified in the I&M manual;
 - (2) The frequency of inspections;
 - (3) An inspection checklist to be used during each inspection;
 - (4) A requirement to photograph each practice that is subject to the I&M requirement at each inspection of that practice;
 - (5) An I&M log to document each I&M activity;
 - (6) A deicing log to track the amount and type of deicing materials applied to the site;
 - (7) A plan showing the locations of all the stormwater practices described in the I&M manual;
 - (8) Actions to be taken if any invasive species begin to grow in the stormwater management practices.
- (c)** All record keeping required by the I&M manual shall be maintained by the responsible party(ies) and be made available to the department upon request.

(d) Upon the completion of all terrain alteration activities that direct stormwater to a particular practice, the responsible party(ies) shall initiate the I&M activities.

(e) The responsible party(ies) may contract with one or more third parties to conduct the I&M activities but shall remain responsible for ensuring the long-term effectiveness of the stormwater practices.

(f) If a federal or state agency or a political subdivision of the state agrees to assume the responsibility for some or all components of the stormwater management system, the following shall apply:

(1) The transferor responsible party(ies) shall document the transfer of responsibility in writing to the department;

(2) No I&M manual shall be required for those components for which the agency or political subdivision assumes responsibility, unless required by the agency or political subdivision as a condition of accepting responsibility; and

(3) The agency or political subdivision that agrees to assume responsibility shall document that maintenance activities are being performed as necessary to ensure the long-term effectiveness of those components of the stormwater management system for which the agency or political subdivision assumed responsibility.

(g) If ownership of commercial or industrial property is transferred, the new property owner(s) shall become the responsible party(ies).

(h) If the property is a residential development for which a homeowners' association will be established, then:

(1) The homeowners' association shall become the responsible party as specified in the documentation that establishes the association; and

(2) If the homeowners' association is dissolved or otherwise discontinued, the individual homeowners shall have joint and several liability for all I&M obligations

MEMBER: Member shall mean a member of the HOA and shall further mean an owner of a Lot. Where there is more than one owner of a Lot, the group of owners of a single lot, cumulatively, shall be treated as one (1) member.

ELIGIBLE VOTING MEMBERS: shall mean the Declarant, provided it owns any lot, and all members who, at the time of a vote by them, owe no outstanding charges assessed by the Association against them or their Lot.

DECLARANT CONTROL: Declarant Control shall mean the period of time during which Declarant shall have control over all voting in the HOA and shall hold all offices in the HOA and shall be the Director of the HOA; said period of control ending on the earlier occurrence of it (a) owning less than nine (9) lots in the Twin Peaks Village subdivision, (b) having relinquished control, or (c) December 31, 2036, unless as further time is allowed by majority vote of the members of the HOA.

BYLAWS: Bylaws of the HOA are attached as **Exhibit A**. The Bylaws shall provide the protocols of governance of the HOA.

SUBDIVISIONS:

Phase I Subdivision of land (being a portion of the Property) creating ten (10) lots on which nine (9) are residential building lots and the 10th lot was reserved for future development. The tenth lot was further subdivided into 18 residential building lots in Phase II. Site Plan approval of the ten lots in Phase 1 was given by the Town of Carroll Planning Board and Site Plan for Phase I was recorded in 2005 IN CCRD as Plan No. 2572.

Phase II Subdivision of land creating eighteen (18) residential building lots out of the tenth lot of Phase I. Phase II Subdivision shall also be recorded in CCRD.

PLANS:

Phase I Subdivision Plan. Subdivision Plan, dated July 7, 2005, and approved by the Town of Carroll Planning Board was recorded in Coos County Registry of Deeds as Plan No. 2572. This plan shows the ten (10) lots in Phase 1 and the private, interior road serving these lots.

Phase I Site Plan. Site Plan recorded in CCRD as Plan No. 4619.

Phase II Subdivision Plan. Subdivision Plan, dated July 23, 2023, and approved by the Town of Carroll Planning Board on May 2, 2024, to be recorded in Coos County Registry of Deeds.

Phase II Site Plan. Site Plan to be recorded in CCRD.

COMMON ELEMENTS: Land part of the Property which is not one of the 27 lots, including the Road and certain drainage areas and other area not located on a Lot; all to be owned and maintained by the HOA and costs to maintain, repair and replace shall be a cost **billed to the Lot Owners as part of the HOA budget**. Improvements and easements located on the Property for which easement and rights of access have been granted or reserved herein to the Declarant or to the HOA or to the Echo Lake Investments LLC, or to the Town of Carroll, for which rights of access and easement has been granted, declared or reserved and which easements and access rights are shown on the Common Elements Plan. Said improvements, easements and access generally serve the Property but not a particular lot or lots exclusively, including, without limitation, Ponds and Drainage, Road, and Easements as defined above, including, without limitation, Solar Spring Circle, Ponds and Drainage, infrastructure, and land area in, on and within the Property whether on Lots or other land within the Property, including, without limitation, wetland crossing coverage, crossings over

Town of Carroll water main, drainage improvements, ponds, forebays, culverts, bridges, piping, conduits, and ancillary infrastructure associated therewith, and all such improvements, easements, drainage, maintenance access and the like shown on the Common Elements Plan. Unless so noted in the easement language, easements granted to the Town of Carroll impose no obligation to the Town of Carroll to inspect, replace or repair any Common Element. Costs to maintain, repair and replace the Common Elements shall be a cost **billed to the Lot Owners as part of the HOA budget.**

EASEMENTS PLAN, entitled: "ECHO LAKE INVESTMENTS, LLC 'TWIN PEAKS VILLAGE' 233 Route 3 South, Carroll, New Hampshire, EASEMENT PLANS, ASSESSORS MAP 206 LOTS 53, 58, 58.1, 58.2, 58.3, 58.4, 58.5, 58.6, 58.7 AND 58.8 Coos County Registry of Deeds Book 1430, Page 367", dated 7/9/24, last revised _____ drawn by Horizons Engineering and recorded in Coos County Registry of Deeds as Plan No. _____, and as may be amended from time to time, showing location and metes and bounds description of Solar Spring Circle (interior road) slope easements, drainage easements, maintenance access easements, water line easements, underground utility easements, and other easements, ponds, drainage, shared driveways, and declared and granted by and through this Declaration, or granted and recorded prior to date of recordation of this Declaration, and location of ponds, wetland crossings, town water main line crossing, drainage improvements, drainage easements, utility easements, slope easements, maintenance access easements, underground utility lines, and Drainage, Utility and ROW Easement over abutting Tax Map 206, Parcel 54, Town of Carroll Water Main line easement, and Water Line easement.

1. **COMMON ELEMENTS EASEMENTS:** All previously recorded easements referenced as part of the Common Elements, the locations and dimensions of which are shown on the Common Elements Plan, to which reference may be made for more detailed metes and bounds descriptions. A list of common elements easements on the Lots is attached as **Exhibit B**. See also, the Lot Identification Chart attached as **Exhibit G**. The HOA has maintenance and repair responsibilities for all easements granted to either the HOA or to the Echo Lake Homeowners Association or to Declarant created by and through this Declaration, excepting utility easements and shared driveway easements unless so noted on the utility easements. Whether or not shown on the Common Elements Plan or listed in **Exhibit B**, this DECLARATION OF COVENANTS, RESTRICTIONS, RESERVATIONS and BYLAWS reserves to the Declarant and its successors and assigns and grants to the HOA the right and easement and access to enter into and onto and over any portion of any Lot, including driveways, driveway easements, drainage easements and maintenance access easements by men, vehicles and machines to inspect, maintain, repair and replace all Common Elements, subject to the obligation to reasonably reclaim any Lot area disturbed by such access, inspection, maintenance, repair and replacement. All easements are subject to all matters of recorded in Carroll County Registry of Deed.

The Common Elements also include the following previously recorded easements:

Drainage, Utility and ROW easement granted to Echo Lake Investments, Inc. over a portion of Tax Map 206, Parcel 54 recorded in CCRD at Book 1665, Page 211.

Slope Easement granted to Echo Lake Subdivision Homeowners Association recorded in HCRD at Book 1607, Page 719.

Drainage Easement granted to Echo Lake Subdivision Homeowners Association recorded in HCRD at Book 1607, Page 722.

and

The HOA's obligations as successor to Echo Lake Investments, LLC, under Watermain Easement Deed granted to Town of Carroll, recorded in CCRD at Book 1607, Page 716.

The HOA's obligations as successor to Naturally New Hampshire Healthfully Yours Resort, Inc. under the utility Easement Deed granted to Public Service Company of New Hampshire and Verizon New England, recorded in CCRD at Book 1188, Page 549.

NON-COMMON ELEMENTS EASEMENTS: Non-Common Element Easements include the Shared Driveway Easements granted to specific Lot owners in **Exhibit D**, Watermain Easement to Town of Carroll recorded in CCRD at Book 1607, Page 716, Watermain Easement to Town of Carroll recorded in CCRD at Book 474, Page 315, and Utility Easement to Public Service Company of New Hampshire and to Verizon recorded in CCRD at Book 1188, Page 549. . See also, the Lot Identification Chart attached as **Exhibit G**. The Grantees of these easements and their successors and assigns, have the sole responsibility to inspect, maintain, repair and replace the improvements within these easements. Easements granted or declared herein benefitting a utility provider shall be maintained, repaired and replaced by the grantee utility provider and its successors and assigns. Easements granted or declared herein benefitting or granted to the Town of Carroll shall be maintained, repaired and replaced by the Town of Carroll. If buildings or other improvements, including landscaping, unreasonably interfere with such easements, the HOA will be responsible for removing the buildings or improvements. The HOA also will take reasonable precautions to protect the easements, including the existing watermain easement, from damage or disturbance. If any damage is caused by the HOA or its members, the HOA will be responsible for the cost to repair or replacing the existing watermain or related equipment. The particular affected Lot owners benefitted by and burdened by the shared driveways shall have the responsibility to inspect, maintain, repair and replace the shared driveway easements to keep them safe for pedestrian and vehicular traffic, to remove snow and vegetation therefrom and to be bound by the terms and limitations described in **Exhibit D**. Easements granted or declared herein benefitting or granted to the Town of Carroll shall be maintained, repaired and replaced by the Town of Carroll. If buildings or other improvements, including landscaping,

unreasonably interfere with such easements, the HOA will be responsible for removing the buildings or improvements. The HOA also will take reasonable precautions to protect the easements, including the existing watermain easement, from damage or disturbance and if any damage is caused by the HOA or its members, the HOA will be responsible for the cost to repair or replace the affected sections of the existing watermain or related equipment.

MAINTENANCE ACCESS EASEMENTS: As shown on Sheets 6 and 7 of the Easements Plan "Maintenance Access Easements" are located on Tax Map 206 Parcel 53 Lot 1, Tax Map 206 Parcel 53 Lot 2, Tax Map 206 Parcel 53 Lot 3, Tax Map 206 Parcel 53 Lot 5, Tax Map 206 Parcel 53 Lot 6, Tax Map 206 Parcel 53 Lot 7, Tax Map 206 Parcel 53 Lot 18, Tax Map 206 Parcel 58, and Tax Map 206 Parcel 58.7 and shall be used for access by Echo Lake Investments, LLC, the HOA and the Town of Carroll, with men, vehicles, equipment fill, as necessary to inspect, inspect, maintain, repair and replace. See also, the Lot Identification Chart attached as **Exhibit G**. By virtue, hereof the Declarant reserves to itself and its successor and assigns, and the HOA and Town of Carroll are granted easement rights of access, as described above on and over the Maintenance Access Easements. The Town of Carroll, despite this grant of easement and access shall have no obligation to inspect, maintain, repair and replace the ponds and drainage.

PONDS and DRAINAGE: "Ponds and Drainage" as used shall include, various retention, detention, and fire ponds, storm water management basins, catch basins, infiltration basins, spillways, outlet control weirs, rip-rap weirs, culverts, inverts, and drainage areas shown on the Common Elements Plan, and all are part of the Common Elements that are located either on one or more of the Lots or on non-lot areas owned by the HOA. The Declarant reserves to itself and to its successors and assigns, and the HOA, and the Town of Carroll are hereby granted easements and access rights to come onto and into these ponds and drainage areas and to travel over the maintenance access easements for that purpose with men, vehicles and equipment to inspect, maintain, repair and replace the ponds and drainage. The Town of Carroll, despite this grant of easement and access shall have no obligation to inspect, maintain, repair and replace the ponds and drainage.

SPECIFIC REQUIREMENTS: Attached as **Exhibit C** are the specific duties, requirements and prohibitions affecting the HOA 's duties to maintain the Common Elements.

ROAD: The interior, private road serving all the 27 lots, named "Solar Spring Circle" located as shown on the Plans is a "Common Element." The HOA, and the Declarant, while it has control over the HOA, shall have the sole responsibility to maintain, repair

and replace the Road. The Town of Carroll is granted the easement and access rights to travel over the Road by men and vehicles to provide emergency, fire and police service to the occupants of the Lots, and to inspect the Slopes, Ponds and Drainage areas. The Town of Carroll, despite this grant of easement and access, will have no obligation to inspect, maintain, repair or replace the interior, private road.

SHARED DRIVEWAYS: As shown on Sheets 6 and 7 of the Easements Plan, "Shared Driveway Easements" are located on Tax Map 206 Parcel 53 Lots 2 and 3, Tax Map 206 Parcel 53 Lots 4 and 5, Tax Map 206 Parcel 53 Lots 6 and 7 and Tax Map 206 Parcel 53 Lots 10 and 11 are served with shared driveways. See also, the Lot Identification Chart attached as **Exhibit G**. By and through this DECLARATION OF COVENANTS, RESTRICTIONS, RESERVATIONS and BYLAWS, these lots are encumbered and benefitted by these shared driveways as easement and access rights, more particularly described herein at **Exhibit D**. Shared Driveway easements are not Common Elements. The right to use the shared driveways is limited to the owners, guests and invitees of each of the served lots either encumbered by or benefitted by the HOA and its agents, the Declarant during its period of control, and all emergency, fire and safety services and the Town of Carroll as necessary to access and use any Maintenance Access Easement. The affected Lot owners have the sole and exclusive obligation to maintain the shared driveways to provide safe vehicular and pedestrian passage thereon. The rights of use and access and obligations to maintain shall run with the lots, irrespective if such rights and obligations are recited in the conveyance deeds of these lots.

PHASES:

(See Lot Identification Chart attached as **Exhibit G**.)

Phase I: The build out of Tax Map 206, Parcel 58;

Tax Map 206 Parcel 58; Tax Map 206, Parcel 58.1; Map 206, Parcel 58.2; Map 206, Parcel 58.3; Map 206, Parcel 58.4; Map 206, Parcel 58.5; Map 206, Parcel 58.6; Map 206, Parcel 58.7; and Map 206, Parcel 58.8, all as shown on the Easements Plan.

Phase II: The build out of Tax Map 206, Parcel 53; Lots 1-18

Map 206, Parcel 53, Lot 1; Map 206, Parcel 53, Lot 2; Map 206, Parcel 53, Lot 3; Map 206, Parcel 53, Lot 4; Map 206, Parcel 53, Lot 5; Map 206, Parcel 53, Lot 6; Map 206, Parcel 53, Lot 7; Map 206, Parcel 53, Lot 8; Map 206, Parcel 53, Lot 9; Map 206, Parcel 53, Lot 10; Map 206, Parcel 53, Lot 11; Map 206, Parcel 53, Lot 13; Map 206, Parcel 53, Lot 14; Map 206, Parcel 53, Lot 15; Map 206, Parcel 53, Lot 16; Map 206, Parcel 53, Lot 17; Map 206, Parcel 53, Lot 18; all as shown on the Easements Plan.

WITNESSETH:

WHEREAS, Declarant intends to develop the Village in two phases: Phase I containing 9 building lots as shown on the Phase I Subdivision Plan and Phase II containing 18 building lots, as shown on the Phase II Subdivision Plan; and

WHEREAS, the Phase I and Phase II Subdivisions have been or will be created by recording their respective subdivision plans in CCRD, and

WHEREAS, Phase I shall be developed first; and

WHEREAS, the locations and dimensions of easements referenced herein are shown on the Common Elements Plan, to which reference may be made for more detailed metes and bounds descriptions of the Common Elements, and

WHEREAS, Declarant desires to provide for the maintenance, repair and replacement of said Common Elements, and for that purpose desires to subject the portion of the Property comprising the Phase I and Phase II subdivisions to the covenants, restrictions, easements, charges and liens, hereinafter set forth, each and all of which is and are for the benefit of each lot in the Village and each lot owner thereof; and

WHEREAS, Declarant has deemed it desirable, for the efficient maintenance of the Common Elements to create the TWIN PEAKS VILLAGE HOMEOWNERS' ASSOCIATION to which is delegated and assigned the powers of maintaining and administering the Common Elements and facilities and administering and enforcing the covenants and restrictions, and disbursing the assessments and charges hereinafter created; and

WHEREAS, Declarant has created under the laws of the State of New Hampshire as a non-profit association, TWIN PEAKS VILLAGE HOMEOWNERS' ASSOCIATION (the "Association") a/k/a the "HOA") for the purposes of exercising the functions and duties aforesaid; and

ARTICLE II

THE PROPERTIES SUBJECT TO THIS DECLARATION:

NOW THEREFORE, the Declarant declares that the 27 building lots comprising Phase I and Phase II is and shall be held, transferred, sold, and occupied subject to the covenants, restrictions, easements, charges and assessments hereinafter set forth. The applicable phase and Easement plans and the Declaration, Bylaws shall be recorded before any conveyance of any Lot on a particular phase plan is conveyed.

ARTICLE III

DUTIES AND RIGHTS REGARDING COMMON ELEMENTS:

Section 1. DUTIES

The HOA is charged with the following duties:

- a. The Common Elements shall be maintained, repaired and replaced in perpetuity by the HOA and kept in state of repair in perpetuity sufficient for the reasonable function of the purposes and use of the Common Elements by the Declarant, HOA, Town of Carroll, Lot Owners, their guests, invitees, successors, and assigns.
- b. The HOA shall ensure that the Specific Requirements are adhered to by the Lot Owners and their family, guests and invitees. As the HOA deems prudent or necessary, relevant notices, signage and fines for violations will be utilized for this purpose.
- c. The HOA and its agents shall, as needed to facilitate the proper functioning of the Common Elements and adherence to the Specific Requirements have the right and obligation to remove snow, debris, obstructions unpermitted improvements, and trees, shrubbery and vegetative growth from the Common Elements, and add sand, gravel and aggregate, and erosion control measures, as needed to maintain the proper functioning of the Common Elements and to otherwise take such steps as are necessary to fulfill its duties regarding the Common Elements and the Specific Requirements.
- d. The HOA has the right and easement in and over and onto the maintenance access easements, the driveways, and any other portion of a Lot with men, equipment, machinery and material to access, maintain and repair the Common Elements and to ensure adherence to the Specific Restrictions, subject to the responsibility to reasonably reclaim any disturbed area on a Lot.

- e. The HOA shall have the right to promulgate and enforce rules and regulations governing the Common Elements.
- f. The HOA shall have the authority and duty to create a yearly budget sufficient to pay the costs to fulfill its duties, and assess each Lot with a 1/27th share of the yearly costs, and the Lot owner shall have a commensurate obligation to pay such assessment when due, and further, the HOA shall have the authority and duty to assess interest and penalties against a Lot and Lot owner for late payments and violations of this Declaration, and the right to collect from the lot owner reasonable attorney fees and costs incurred in enforcing this subsection.

ARTICLE IV

ASSESSMENTS:

Section 1. Purpose of Assessments. The assessments levied by the Association shall be used exclusively for the purpose of providing for (a) performing the SPECIFIC REQUIREMENTS which specific duties, requirements and prohibitions affecting the HOA 's duties to maintain the Common Elements are specified in **Exhibit B**, and (b) to perform the maintenance, repair, replacement and insuring Common Elements to keep them in a state of repair that will not unreasonably impair or impede their uses and purposes, and that will promote their proper functioning for the benefit of the Village, Lots and Owners.

Section 2. Assessment Obligations.

a). **Annual assessments** for charges to cover the cost of inspection, maintenance, repair, and replacement of the Common Elements and, at the election of the Board of Directors in its sole discretion, creation of a capital improvement fund to cover future capital costs for replacement and capital repairs of the Common Elements. Annual assessments shall be fixed, established and collected by the Board of Directors after the establishment of a budget for the year. A copy of the budget shall be forwarded pursuant to Article VII, Section 1.

b). **Special Assessments** for capital improvements, maintenance, repair, and replacement of the Common Elements to cover unanticipated costs not covered by the Annual Budget assessments may be levied by the Association against one or some or all of the Lots which have need of capital improvements, maintenance, repair, and replacement of the Common Elements unique to these particular one or some of the lots due to acts of omissions of the affected Lot owners, their family member or invitees provided that any such assessment shall have the assent of fifty-one (51%) of

the Eligible Voting Members who are voting in person or by proxy at a meeting duly called for this purpose, written and/or email notice sent at least 30 days in advance of meeting shall be sent to all Members pursuant to Article VII, Section 1. .

c). **Notice** shall mean notice to all Members. If more than one person owns a Unit, notice need only be given to one of the owners. If a particular owner is designated by email or written notice to the Board at least sixty (60) days before notice is scheduled to go out, notice shall be sent to that one designated person.

d) **Charge on the Lots and Owners.** Annual and Special Assessments, together with such interest thereon and cost of collection thereof as hereinafter provided, shall be a charge on the Lots against which each such assessment is made all as provided in Article IV, Section 6 below. Each such assessment, together with such interest thereon and cost of collection thereof as hereinafter provided, shall also be the personal obligation of the person or persons or entity, jointly and severally, who is the Owner of such property at the time when the assessment fell due, together with his/her/its successors and assigns. Although the Owner may require this obligation by lease to be paid by a tenant, the ultimate responsibility for payment of assessments remains with the Owner and his successors and assigns. At the direction of the Board of Directors of the Association, a lien for any assessments may be recorded in the Coos County Registry of Deeds against any Lot owner who has not paid an assessment. The cost for creating the lien, including reasonable attorney fees, and the cost of recording shall be a charge against Lot and Owner of the Lot for which the lien was created.

Section 3. Quorum and Voting. While the Declarant Control exists, Echo Lake Investments, LLC, and its successors and assigns as successor Declarant shall be the sole Director and President, Treasurer and Secretary of the HOA and shall have voting control over the HOA and shall unilaterally make all decisions of the HOA. After Declarant Control terminates, eligible Voting Members present at meetings in person or by proxy entitled to cast thirty-three and one third percent (33.333%) of all the votes shall constitute a quorum. The Declarant, after Declarant Control terminates, shall be an Eligible Voting Member for each lot it owns. After Declarant Control terminates, a seventy-five percent (75%) vote is required of Eligible Voting Members at a meeting, in person or by written proxy, to pass any amendment to the Declaration or Bylaws, and a vote of two thirds (2/3) of Eligible Voting Members is required for approval of any other action voted on, PROVIDED, FURTHER, that no amendment or action may impair or dilute or negate the right to the further development of all 27 lots by the Declarant or its assigns. This right of the Declarant, its successors and assigns to develop Lots, is irrevocable in all cases except if the Declarant, or its successor Declarant, terminates this right by recording a termination. If the required quorum is not forthcoming at any meeting, another meeting may be called, subject to the notice requirement of thirty (30) days and purpose of meeting, and the required quorum at any such subsequent meeting shall be one-half (1/2) of the required quorum at the preceding meeting, provided that no such subsequent meeting shall be held more than sixty (60) days following the

preceding meeting.

Section 4. Date of Commencement of Assessments. Monthly assessments shall be charged. The first monthly assessments provided for herein shall commence on the first day of the designated month fixed by the Board of Directors of the Association to be the date when assessments are first due. Thereafter, unless otherwise mandated by the Board, assessment shall be due and paid for by the first day of each successive month.

Section 5. Assessments. Each lot shall be assessed 1/27 of the common element expenses. A 5% late fee of the amount left unpaid after ten (10) days from its due date shall be charged for each month that an assessment is not paid in full. The late fee shall be a lien against the unit so charged.

Section 6. Authority and Duties of the Board of Directors. After the Declarant Control has ended, the Board of Directors (the "Board") shall be elected by the majority vote of a quorum of Eligible Voting Members pursuant to the Bylaws and shall be the governing body of the Association, charged with enforcing this Declaration. At least thirty (30) days in advance of the date of the Annual Meeting of the membership, the Board of Directors shall prepare a budget supporting the calculation of the assessments applicable thereto, which shall be kept in the office of the Association and shall be open to inspection by any Owner who is a Member. Written notice as provided in Article V, Section 2 shall be sent to every Owner subject thereto. The Association shall upon demand at any time, furnish to any Owner liable for said assessment, a certificate in writing signed by an officer of the Association, setting forth whether such assessment has been paid. Such a certificate shall be conclusive evidence of payment of any assessment therein stated to have been paid. The Association may charge the higher of \$15.00 or such other amount permitted by New Hampshire law for this service.

Section 7. Default Interest. All assessments made against any Lot shall run with and bind the land and shall be a personal obligation of the Owner of such Lot and subsequent owners of said Lot, and the legal representatives, heirs, successors and assigns of the Owner of the Lot at the time the assessment was made. If any assessment is not paid within ten (10) days of its due date, in addition to any late fee charged, the unpaid amount shall thereafter bear interest at the rate of ten percent (10%) per year, retroactively accruing from the original due date of the assessment forward until the default is cured in full by payment of all amounts due, including assessments, late fee and default interest to date of payment. In the event of non-payment, the Board of Directors may bring an action at law or an equity to collect any assessment which

remains unpaid, together with such interest and late fees as may then be due and the costs of collection including reasonable attorney's fees. At the direction of the Board of Directors, a lien for any unpaid assessment may be recorded in the Coos County Registry of Deeds to protect the Association's interest.

Section 8. Special Provisions Applicable to Foreclosed Properties. In the event the holder (other than the Association) of a first mortgage on any of the Lots (or any additions thereto) acquires title to the same by foreclosure, the foregoing provisions relative to assessments shall apply to whomever purchases the foreclosed Lot who shall be liable for unpaid assessments, whether lien on the Lot or not, and any Association lien on the foreclosed Lot shall take precedence over the mortgage being foreclosed unless New Hampshire law prohibits such precedence.

ARTICLE V

RESTRICTIONS and COVENANTS RUN WITH THE LAND:

1. These restrictions and covenants shall run with and bind all 27 lots.
2. The Association or any Owner may seek the enforcement of these restrictions by commencing proceedings at law or in equity against any person or persons violating or attempting to violate any covenant or restrictions, either to restrain violation or to recover damages, and failure by the Association or any Owner to enforce any covenant or restriction herein contained shall in no event be deemed a waiver of the right to do so thereafter.
3. This Declaration, the Bylaws of the Association, and any rules and regulations of the Association, as amended from time-to-time, are also expressly declared to be for the benefit of the Town of Carroll (the "Town"), and any other commission, board and/or agency of the Town except as waived, approved, or amended by the Declarant, may be enforced by an action at law or in equity by the Town or an appropriate commission, board, agency or officer of the Town. If the Town maintains such an action and prevails, it shall be entitled to recover from the Association or violating owner, as the case may be all reasonable costs and expenses of such an action, including reasonable attorney's fees.

ARTICLE VI

CAPITAL IMPROVEMENT FUND:

The Association may, but is not obligated to, maintain a capital reserve account to maintain, repair and replace the Common Elements. If maintained, the annual Budget shall include a capital reserve component and the same shall be charged to the Lot Owners as part of the monthly assessment.

ARTICLE VII

GENERAL PROVISIONS:

Section 1. Notices. Any notice required to be sent to any Member or Owner under the provisions of this Declaration shall be deemed to have been properly sent when emailed or mailed, postage paid, to the last known address (or, as applicable, the last known email address) of the person who appears as Member or Owner on the records of the Association at the time of such mailing.

Section 2. Severability. Invalidation of any one of these covenants by judgment of Court shall in no way affect any other provisions which shall remain in full force and effect.

Section 3. Prior Covenants. These Covenants shall supersede all prior covenants affecting the Community.

Section 4. Termination and Amendments.

- (a) Article III , Article V and **Exhibit C** shall not be amended, and this Declaration may not be terminated without approval in writing or waiver of approval in writing from the Town of Carroll Planning Board.
- (b) Subject to Subsection (a), above, an amendment to terminate this Declaration may not be passed without an 80% vote of Eligible Voting Members, the affirmative vote and consent of the Declarant during Declarant Control, and the written consent of the Town of Carroll Planning Board.
- (c) Subject to Subsection (a), above, an amendment to terminate this Declaration may not be passed without an 80% vote of Eligible Voting Members after Declarant Control terminates, the written consent of the Town of Carroll Planning Board, and the written consent of 80% of the institutional lenders holding mortgages on the Lots.

- (d) Subject to Subsection (a), above, and to Declaration Article X, while Declarant Control is active this Declaration and Bylaws may be amended only by a seventy-five percent (75%) vote of Eligible Voting Members at a meeting, in person or by written proxy and the affirmative vote and consent of Declarant and the written consent of 80% of the institutional lenders holding mortgages on the Lots. A vote of two thirds (2/3) of Eligible Voting Members is required for approval of any other action voted on, unless a smaller percentage of the vote is allowed in other sections of this Declaration.
- (e) Subject to Subsection (a), above, and to Declaration Article X, this Declaration and Bylaws may be amended only by a vote of two-thirds (2/3) of the Eligible Voting Members after period of Declarant Control has terminated unless a smaller percentage of vote is allowed in other sections of this Declaration.
- (f) Any amendment shall be recorded in the Coos County Registry of Deeds.

ARTICLE VIII

OBLIGATIONS OF OWNERS:

Section 1. These obligations shall run with and bind the Village, Lots, and the Owners, and shall ensure the benefit and be enforceable by the Association and Owners subject to this Declaration, their respective legal representatives, heirs, successors and assignees, and by the Town of Carroll, New Hampshire.

Section 2. The Association shall adopt no By-Law nor rule which may be inconsistent with the Declaration of Covenants and Restrictions of the Association or abrogate any of the responsibilities of the Association or Declarant as contained in the Declaration of Covenants and Restrictions.

ARTICLE IX

BYLAWS:

The Bylaws of the Association, attached hereto as **EXHIBIT A**, are made a part hereof.

ARTICLE X

FEDERAL HOME LOAN ASSOCIATION (FHA LOAN), FEDERAL HOME LOAN MORTGAGE CORPORATION (FREDDIE MAC LOAN) and FARMERS HOME LOAN (USDA LOAN)

If any provision herein conflicts with a provision of the FHA, FREDDI MAC or USDA such that the conflict would prevent a potential buyer of a Lot from qualifying for loan from the FHA, FREDDIE MAC or USDA, the Declarant or the Board of Directors if the Declarant is not in control, may amend this Declaration without a vote of the members, to make it compliant with the provisions of the FHA, FREDDIE MAC or USDA, as may be applicable to allow a buyer to procure such loan.

ARTICLE XI

RESERVATION OF POWER

Section 1. Generally. Declarant reserves to itself, and to its successors and assigns as successor Declarants, provided Declarant or its successor and assigns owns at least one lot in the subdivision which has not yet had a dwelling built on it, the right and authority to grant utility easements to the Town of Carroll, New Hampshire for any reason which will benefit the Village, or to third party utility providers of gas, electricity, other utility providers, wi-fi, internet, cable, and telephone over, on, and in any part of the land comprising the Twin Peaks Village Subdivision as shown on the Plans, including on Lots, for the purpose of providing access for such utilities to lay conduit and pipe and wire to facilitate and provide utility service to the Lots, and to provide access for men and machinery to place, build, maintain, replaced and repair improvements within the utility easement areas.

Section 2. Easements of Record. This Declaration and the Lots are subject to any and all easements granted in, over and under the Property to the Town of Carroll, New Hampshire, to utility providers, which are recorded in the Coos County Registry of Deeds, or which are granted by the Declarant or the HOA or their successors and assigns. Declarant reserves to itself, and to its successors and assigns as successor Declarants, provided Declarant or its successor and assigns owns at least one lot in the subdivision which has not yet had a dwelling built on it, the right and authority to grant such additional easements in, under and over the Property, including in, under and over the Lots.

IN WITNESS WHEREOF, TWIN PEAKS VILLAGE SUBDIVISION, LLC, has caused these presents to be signed by its Manager on the date and year first written above.

ECHO LAKE INVESTMENTS, LLC

Witness

By: _____
Name: Syed Nuruzzaman, Manager
Duly authorized
Date: _____, 2026

COUNTY OF
STATE/Commonwealth of

On this ____ day of _____, 2026, personally appeared before me, Syed Nuruzzaman, known to me (or satisfactorily proven) to be the individual who executed the foregoing instrument and he acknowledged that he is the Manager of Echo Lake Investments, LLC, that he executed the within instrument for the purposes therein contained, and that the same is his voluntary act and deed for and on behalf of said Echo Lake Investments, LLC.

/seal/

Justice of the Peace/Notary Public
State of New Hampshire
My Commission expires:

EXHIBIT A

BYLAWS OF

TWIN PEAKS VILLAGE SUBDIVISION HOMEOWNERS' ASSOCIATION

The Bylaws herein are subject to "Declaration Control" as the term is defined in the Declaration of Covenants, Restrictions, Reservations and Bylaws of Twin Peaks Village Homeowner's Association.

ARTICLE ONE

Section 1. Duties of the Association. The TWIN PEAKS VILLAGE SUBDIVISION HOMEOWNERS ASSOCIATION ("Association") is charged with the responsibility and obligation to enforce the provisions of the Declaration of Covenants and Restrictions and Grant of the Association (the "Declaration") for the benefit of its Members, including performing the SPECIFIC REQUIREMENTS which specific duties, requirements and prohibitions affecting the HOA 's duties to maintain the Common Elements are specified in Exhibit C, and (b) to perform the maintenance, repair, replacement and insuring Common Elements to keep them in a state of repair that will not unreasonably impair or impede their uses and purposes, and that will promote their proper functioning for the benefit of the Village, Lots and Owners and to maintain, repair, replace, insure as needed the Common Elements described in the Declaration, and to assess costs against the lot owners in the Twin Peaks Village Subdivision, pay taxes on, make rules of operation and operate the Association in pursuance of its rights and obligations for the benefit of its Members.

Section 2. Purpose of these Association Bylaws. These Bylaws provide the terms and conditions upon which the Association fulfills its duties described in Section 1., and the conditions upon which it shall operate, and the responsibilities and rights of the members, the Board of Directors and the Association.

Section 3. Limitations. These Bylaws are subject to the Declaration recorded in Coos County Registry of Deeds on near or even date herewith. Whenever a conflict in terms of said Declaration and these Bylaws exists, the terms of the Declaration shall be controlling.

ARTICLE TWO

Offices. The *initial* principal office of the Association shall be located at 12 Wheeler Road, Lexington, Massachusetts 04240, or at such other location(s) as the Board of Directors establishes, from time to time.

ARTICLE THREE

MEMBERS

Section 1. Members. Subject to the Declaration, the qualifications for membership shall be ownership of one of the "Lots" as defined in the Declaration.

Section 2. Voting Rights. Subject to the rights of the Declarant as stated in the Declaration, only Eligible Voting Members (as defined in the Declaration) shall be entitled to one vote on each matter submitted to a vote of the members, to wit: one vote per lot. If a Lot has more than one owner, each owner shall have a proportionally weighted vote, provide the total lot vote shall count as no more than "1" per Lot owned.

Section 3. Termination of Membership. Membership shall be terminated upon the sale of lot owner's interest, and the purchaser of the former member's lot shall membership for that sold Lot shall be automatically transferred to the new lot owner.

Section 4. Resignation. No member may resign without conveying his lot interest.

Section 6. Transfer of Membership. Membership in this association is not transferable or assignable other than through conveyance of a Lot.

ARTICLE FOUR

MEETINGS OF MEMBERS

SPECIAL CONDITION: Until Declarant Control Terminates, there shall be no meetings and no votes as all decisions of the HOA shall be made unilaterally by the Declarant. After Declarant Control terminates the provisions below shall be operative.

Section 1. Quorum. For a valid vote to take place at any meeting, a Quorum of at least 33 1/3 percent eligible votes must be present in person or by written proxy.

Section 2. Annual Meeting. An annual meeting of the members shall be held at the premises on the fourth Saturday in the month of March each year, beginning with the year after formation of this association at 10:00 a.m. for the purpose of electing directors and for the transaction of such other business as may come before the meeting. If the election of directors is not held on the day designated herein for any annual meeting, or at any adjournment thereof, the board of directors shall cause the election to be held at a special meeting of the members as soon thereafter as is convenient.

Section 3. Special Meetings. Special meetings of the members may be called by the President, the majority vote of the Board of Directors, or upon no less than three (3) Eligible Voting Members request, in dated writing or email to the President that a Special Meeting be held for stated particular purpose.

Section 4. Notice of Meetings. Written or printed notice or notice by email stating the place, day and hour of any meeting of members and the purpose of holding the annual meeting and with copies of any proposed amendments or agenda items shall be delivered either personally, by first-class postage prepaid mail, or by email, to each Member not less than thirty days before the date of such meeting. Written or printed notice or notice by email stating the place, day and hour of any meeting of members and the purpose of holding a special meeting and with copies of any proposed amendments or agenda items shall be delivered either personally, by first-class postage prepaid mail, or by email, to each Member not less than ten days before the date of such meeting. If mailed, the notice of a meeting shall be deemed to be delivered when deposited in the United States mail addressed to the member at his address as it appears on the records of the association, with postage thereon prepaid. Requirements of notice may be waived by a vote of 80% of Eligible Voting Members at any meeting in which a Quorum is present.

Section 5. Informal Action by Members. The Board may establish rules and protocols for any action required by law to be taken at a meeting of the members, or any action that may be taken at a meeting of members, provided such rules and protocols are delivered either personally, by first-class postage prepaid mail, or by email, to each Member not less than ninety (90) days before the date of such meeting.

Section 6. Proxies. At any meeting of members, an Eligible Voting Member entitled to vote may vote by proxy executed in writing by the member or by his duly authorized attorney in fact. No proxy shall be valid after three (3) months from the date of its execution, unless otherwise provided in the proxy.

Section 7. Voting by Mail. Where directors or officers are to be elected by members, such an election may be conducted by mail in such a manner as the board of directors shall determine.

ARTICLE FIVE

BOARD OF DIRECTORS

Section 1. General Powers. The affairs of the Association shall be managed by its Board of Directors.

Section 2. Number, Tenure and Qualifications. After termination of Declarant Control, the number of directors shall be an odd number and be at least three (3) . Directors shall be

elected at the annual meeting of members, and the term of office of each director shall be until the next annual meeting of members and the election and qualification of his successor.

Section 3. Regular Meetings. A regular meeting of the board of directors shall be held at least two times in a calendar year, one of which shall be held without any other notice immediately after, and at the same place as the annual meeting of members. The board of directors may provide, by resolution, with the time and place for holding additional regular meetings without other notice than such a resolution. Additional regular meetings shall be held at the principal office of the association in the absence of any designation in the resolution.

Section 4. Special Meetings. Special meetings of the board of directors may be called by or at the request of the president or the Declarant during Declarant Control, or after Declarant Control by any two directors and shall be held at the principal office of the association or at such other place as the directors may determine.

Section 5. Notice. Notice of any non-emergency special meeting of the board of directors shall be given at least ten(10) days previously thereto by written notice delivered personally or sent by mail or by email to each director at his address as shown by the records of the association. Emergency meetings may be held with such notice sufficing, which is reasonable given the circumstances and urgency of a meeting. If notice is mailed, such notice shall be deemed to be delivered when deposited in the United States mail in a sealed envelope so addressed, with postage thereon prepaid. Any director may waive notice of any meeting. The attendance of a director at any meeting shall constitute a waiver of notice of such meeting, except where a director attends a meeting for the express purpose of objecting to the transaction of any business because the meeting is not lawfully called or convened. The business to be transacted at the meeting need not be specified in the notice or waiver of notice of such a meeting, unless specifically required by law or by these bylaws.

Section 6. Board Decisions. Subject to Declarant Control and these Bylaws, a quorum of the Board of Directors shall be at least ½ the directors present provided at least two directors are present. The act of the majority of the directors presents at a meeting at which a quorum is present shall be the act of the board of directors, unless the act of a greater number is required by New Hampshire state law or by these bylaws.

Section 7. Vacancies. Any vacancy occurring on the board of directors and any directorship to be filled because of an increase in the number of directors shall be filled by the board of directors. A director appointed to fill a vacancy shall serve for the unexpired term of his predecessor in office.

Section 8. Compensation. Directors shall not receive any stated salaries for their services. Nothing herein shall be construed to prevent any director from serving the association in any other capacity and receiving compensation, provided before such Director may provide compensable services, in any other capacity notice to all members must be given 90 days

before any contract for services or commencement of services may begin. No Director engaged for compensable services in such other capacity may participate in Board deliberations on matters related to such other capacity or vote on the same.

Section 9. Liability.

The members of the Board shall not be liable to the Owners for any mistake of judgment, negligence, or otherwise, except for their own individual willful misconduct, or bad faith and except as provided for below. The Owners shall indemnify and hold harmless each of the members of the Board against all contractual liability to others arising out of contracts made by the Board on behalf of the Condominium unless any such contract shall have been made in bad faith or contrary to the provisions of the Declaration or of the Bylaws. It is permissible for the members of the Board, who are Directors or Officers of the Declarant, to contract with the Declarant and affiliated corporations without fear of being charged with self-dealing during the period in which the Declarant is in control of the Board of Directors and Officers, provided notice to all members must be given 90 days before any contract for services or commencement of services may begin. It is intended that the members of the Board shall have no personal liability, other than as Owners, with respect to any contract made by them on behalf of the Condominium, except with respect to any such contract made in bad faith or contrary to the provisions of the Declarations or of the Bylaws. It is also intended that the personal liability of each Owner arising out of any contract made by the Board or out of the aforesaid indemnity in favor of the members of the Board shall be limited to such proportion of the total liability thereunder as his or her interest in the Common Area bears to the interests of all the Owners in the Common Area (except that the personal liability of Owner who are members of the Board and who contract in bad faith or contrary to the provisions of the Declaration or of the Bylaws shall not be so limited). However, claims for property damage and personal injury by Owners against the Board or any other insured under the liability insurance policy the Association are not precluded. Notwithstanding the foregoing, each owner is responsible for its proportionate share of all or part of the cost of maintenance, repair or replacement of property for which the HOA is responsible to maintain.

Section 10. Removal of Directors. A Board director may be removed by 2/3 vote of the other directors at a special meeting, duly noticed, where the director for which removal is sought is given an opportunity to be heard on the matter, but the Board has found that the director for which removal is sought has due to actions, absence, or poor performance, egregiously violated the purpose and rules of the Association or has been convicted of break state or federal law.

ARTICLE SIX

OFFICERS

Section 1. Officers. The officers of the association shall be a president, a vice president, a secretary, a treasurer, and such other officers as may be elected in accordance with the provisions of this article. The secretary and treasurer may be the same person. The Declarant shall hold all offices during Declarant Control and thereafter, the board of directors may elect or appoint such other officers, including one or more assistant secretaries and one or more assistant treasurers, as it shall deem desirable, such officers to have the authority and perform the duties prescribed, from time to time, by the Board of Directors. Any two or more offices may be held by the same person, except the person holding the office of president cannot also hold the offices of either treasurer or secretary.

Section 2. Election and Term of Office. After termination of Declarant Control, the officers of the association shall be elected annually by the board of directors at the regular annual meeting of the board of directors. If the election of officers is not held at such a meeting, such an election shall be held as soon thereafter as is convenient. New offices may be created and filled in at any meeting of the board of directors. Each officer shall hold office until his successor has been duly elected and qualifies.

Section 3. Removal. Any officer elected or appointed by the board of directors may be removed by the majority vote of the board of directors whenever in its judgment after the officer is given an opportunity to be heard about the matter at a special meeting duly notice by the Board, if at that meeting, it is found that the best interests of the association would be served thereby, but such removal shall be without prejudice to the contract rights, if any, of the officer so removed.

Section 4. Vacancies. A vacancy in any office because of death, resignation, removal, disqualification, or otherwise, may be filled by the board of directors for the unexpired portion of the term.

Section 5. Powers and Duties. The several officers shall have such powers and shall perform such duties as may from time to time be specified in resolutions or other directives of the board of directors. In the absence of such specifications, each officer shall have the powers and authority and shall perform and discharge the duties of officers of the same title serving in nonprofit associations having the same or similar general purposes and objectives as this association.

ARTICLE SEVEN

COMMITTEES

Section 1. Committees of Directors. The board of directors, by resolution adopted by a majority of the directors in office, may designate one or more committees, each of which shall consist of one or more directors, which committees, to the extent provided in such resolution, shall have and exercise the authority of the board of directors in the management of the association; but the designation of such committees and the delegation thereto of authority shall not operate to relieve the board of directors, or any individual director, of any responsibility imposed on it or him by law.

ARTICLE EIGHT

CONTRACTS, CHECKS, DEPOSITS, AND GIFTS

Section 1. Contracts. The board of directors may authorize any officer or officers or agent or agents of the association, in addition to the officers so authorized by these bylaws, to enter into any contract or execute and deliver any instrument in the name of and on behalf of the association, and such authority may be general or may be confined to specific instances.

Section 2. Checks, Drafts or Orders. After Declarant Control all checks, drafts or orders for the payment of money, notes or other evidence of indebtedness issued in the name of the Association, shall be signed by the President and Treasurer, or in such other manner as shall from time to time be determined by resolution of the board of directors. While the Declarant is a Director, it alone has the unilateral authority to sign all checks, drafts, or orders for the payment of money, notes or other evidence of indebtedness issued in the name of the association.

Section 3. Deposits. All funds of the association shall be deposited from time to time to the credit of the association in such banks, trust companies, or other depositaries as the board of directors may select.

Section 4. Gifts. The board of directors may accept on behalf of the Association any contribution, gift, bequest or devise for any purpose of the Association.

ARTICLE NINE

CERTIFICATES OF MEMBERSHIP

There shall be no certificates of membership issued, it being acknowledged that a duly recorded deed into the owner of a lot is proof of membership in the Association.

ARTICLE TEN

BOOKS AND RECORDS

The association shall keep correct and complete books and records of account and shall also keep minutes of the proceedings of its members, board of directors, committees having and exercising any of the authority of the board of directors, and the membership committee, and shall keep at the principal office a record giving the names and addresses of the members entitled to vote. Any member may inspect all books and records of the association, for any proper purpose at any reasonable time after a 14-day written request made to the Board of Directors.

ARTICLE ELEVEN

FISCAL YEAR

The fiscal year of the association shall be April 1 through the following March 31.

ARTICLE TWELVE

BUDGET AND ASSESSMENTS

Section 1. Budget. After Declarant Control terminates, each year at its annual meeting, the Association (by and through its members) shall adopt a budget for the estimated cost of fulfilling its purpose as described above. Prior to each annual meeting, the board of directors shall prepare and present to the members a proposed budget. The budget, as adopted, shall constitute the basis for determining each member's assessment of his share of the estimated cost of the Association budget. While the Declarant has Declarant Control, it is authorized to act unilaterally to adopt a budget at the annual meeting provided after January 1 of that year when any Lot has been sold to a third-party homeowner, it shall present to such lot-owner members a copy of the Budget no later than sixty days before the annual meeting and provide an opportunity at the annual meeting to discuss the proposed budget before it is adopted unilaterally by the Declarant, it being more probable than not that at that time the Declarant is most aware of budgetary needs given its history developing the subdivision and its awareness of costs of maintenance and administration.

Section 2. Payment of Assessment. All members shall be obligated to pay their proportionate share of the Association Budget as defined in the Declaration. No member who owes an assessment may exempt himself from liability from his/her/their contribution towards the Association Budget. Any grantee of any of the Lots described in the Declaration, by virtue of transfer or other conveyance of that Lot, shall be jointly and severally liable with the grantor of such lot for all unpaid assessments against the Lot, including a purchaser of a lot by way of

foreclosure of a mortgage on a lot.

Section 3. Supplemental Assessments. In light of the potential for unbudgeted costs related to unpredictable northern New England weather and damaging storms, notwithstanding the establishment of an annual budget, in the event that the board of directors determines that additional assessments are necessary to pay expenses and other obligations of the Association, the board of directors may levy such additional assessments as a “special assessment” against the member(s) lots, provided such special assessments may not be more than is needed to financially address a documented unbudgeted damage or related weather cost.

Section 4. Time of Assessments. The board of directors shall determine, from time to time, the manner in which the assessments shall be paid, which may be annual, semiannual, quarterly, monthly or other periodic payments.

Section 5. Termination of Voting. When any member is in default in the payment of his assessments for a period of ten (10) days from the beginning of the period for which such assessments became payable, then until the member’s arrearage, together with late fees and default interest, if any, accrued thereon, his voting rights in the association shall be suspended and such member shall no longer be an Eligible Voting Member, but he/she shall not be relieved of his obligation to pay assessments to the association.

Section 6. Lien for Assessments.

(a) The total annual assessment of each Lot Owner and/or any special assessment levied pursuant to these Bylaws, together with future assessments, are hereby declared to be a present lien levied against the Lot of such Lot Owner.

(b) Upon default of such Lot Owner in the payment of any assessment or special assessment when due, which continues for thirty (30) days after written notice of such default has been sent to the Lot Owner, the maturity of the remaining total of any unpaid installments owed for successive quarters may be accelerated one quarter at a time, at the option of the Board of Directors and the then balance owing for that quarter may be declared due and payable in full by the service of notice to such effect upon the defaulting Lot Owner by the Board of Directors. Thereafter, the Association may place a lien upon the member’s Lot in the Coos County Registry of Deeds and on any improvements thereon for all delinquent assessments without the need of prior judicial approval. Such lien shall secure the payment of the full amount of the delinquent assessment plus 12% simple annual interest charged on the delinquency (as accelerated from the date of the notice of default) until paid in full, and costs, including reasonable attorney fees, incurred in enforcing collection of money owed by the member and in enforcing any other provision of these Bylaws. The Association in order to perfect such lien, shall file before the expiration of six (6) months from the time that the delinquent assessment (or installment, where such assessment is payable in installments) became due and payable, a lien in the Coos County Registry of Deeds. The lien may be

foreclosed in the manner provided by the laws of the State of New Hampshire.

(c) Suit to recover a money judgment for unpaid assessments shall be maintainable without foreclosing or waiving the lien securing the same, and foreclosure shall be available without bringing suit to recover a money judgment. Whichever party prevails in this litigation shall awarded all of its litigation costs, including reasonable attorney fees, sheriff fees, court costs and expert witness fees.

ARTICLE THIRTEEN

RULES

Section 1. Adoption of Rules. The Board may adopt rules from time to time which are not contrary to RSA Chapter 356-A, Town of Carroll ordinances, the Declaration or these Bylaws, to facilitate and ensure the safe, hygienic and reasonable use of the drainage.

Section 2. Enforcement of Rules. The Board shall have the power to enforce the rules so adopted. Further, the Board is authorized to take legal action to enforce this provision, including seeking and obtaining an injunction against the violating member and/or the Board itself remedying the violation and assessing the cost of remedy to the violating member, and the violating member shall pay for all reasonable legal costs incurred by the Board in enforcing this provision, including reasonable attorney fees, sheriff fees, court costs and expert witness fees. Costs so incurred shall be a special assessment to the violating member and a lien on the violating members lot and improvements thereon. Whichever party prevails in litigation brought by either party to enforce a rule or void the application of a rule, the prevailing party shall awarded all of its litigation costs, including reasonable attorney fees, sheriff fees, court costs and expert witness fees.

ARTICLE FOURTEEN

SEAL

The board of directors may provide a corporate seal, bearing the name of the association, but are not obligated to do so.

ARTICLE FIFTEEN

WAIVER OF NOTICE

Whenever any notice is required to be given under the provisions of these bylaws, a waiver thereof in dated writing signed by the person or persons entitled to such notice, whether before or after the time stated therein, shall be deemed equivalent to the giving of such notice.

ARTICLE SIXTEEN

AMENDMENT OF BYLAWS

Subject to Declarant Control these Bylaws may be altered, amended, or repealed, and new bylaws may be adopted at a meeting on the eligible members entitled to vote in the same manner as the Declaration may be amended.

ARTICLE SEVENTEEN

ARTICLES OF AGREEMENT

The Articles of Agreement of the Twin Peaks Village Subdivision Homeowners Association filed with the New Hampshire Secretary of State are by reference herein, hereby incorporated into these Bylaws.

CERTIFICATION

The Declarant, being the sole voting member of the TWIN PEAKS VILLAGE HOMEOWNERS' ASSOCIATION hereby certifies:

The foregoing bylaws were adopted as the Bylaws of TWIN PEAKS VILLAGE HOMEOWNERS ASSOCIATION on the following date: _____ 2026.

ECHO LAKE INVESTMENTS, LLC

Witness

By:

Name: Syed Nuruzzaman, Manager
Duly authorized

Date: _____, 2026

COUNTY OF

STATE/COMMONWEALTH OF

On this _____ day of _____, 2026, personally appeared before me, Syed Nuruzzaman, known to me (or satisfactorily proven) to be the individual who executed the foregoing instrument and he acknowledged that he is the Manager of Echo Lake Investments,

LLC , that he executed the within instrument for the purposes therein contained, and that the same is his voluntary act and deed for and on behalf of said Echo Lake Investments, LLC.

/seal/

Justice of the Peace/Notary Public
State/Commonwealth of:
My Commission expires:

CONSENT OF PLANNING BOAD OF TOWN OF CARROLL , NH

By signing below, the Planning Board of the Town of Carroll, New Hampshire consents to the terms of this DECLARATION OF COVENANTS, RESTRICTIONS, RESERVATIONS and BYLAWS OF TWIN PEAKS VILLAGE HOMEOWNERS' ASSOCIATION, and consents to the termination of the DECLARATION OF COVENANTS, RESTRICTIONS, RESERVATIONS and BYLAWS OF ECHO LAKE SUBDIVISION HOMEOWNERS' ASSOCIATION dated July 25, 2022 and recorded in Coos County Registry of Deeds on 8/17/22 at Book 1608, Page 506.

Signature: _____
Print Name: _____

Date: _____

Signature: _____
Print Name: _____

Date: _____

Signature: _____
Print Name: _____

Date: _____

Signature: _____
Print Name: _____

Date: _____

Signature: _____
Print Name: _____

Date: _____

EXHIBIT B

EASEMENT LIST

Phase	Tax Map / Parcel	20' Water Easement	30' Water Easement	Utility Easement (PSNH)	Drainage Easement	Slope Easement	Maintenance Access	Existing Water Main Easement	Shared Driveway Easement	Existing UGE	Verizon Easement
Phase 1	Tax Map 206 Parcel 58		Water Easement 30'	20' Utility Easement	Drainage Easement	Slope Easement	Maintenance Access			UGE	Telephone Easement
Phase 1	Tax Map 206 Parcel 58.1		Water Easement 30'	20' Utility Easement		Slope Easement				UGE	Telephone Easement
Phase 1	Tax Map 206 Parcel 58.2		Water Easement 30'	20' Utility Easement						UGE	Telephone Easement
Phase 1	Tax Map 206 Parcel 58.3		Water Easement 30'	20' Utility Easement	Drainage Easement					UGE	Telephone Easement
Phase 1	Tax Map 206 Parcel 58.4		Water Easement 30'	20' Utility Easement						UGE	Telephone Easement
Phase 1	Tax Map 206 Parcel 58.5		Water Easement 30'	20' Utility Easement						UGE	Telephone Easement
Phase 1	Tax Map 206 Parcel 58.6		Water Easement 30'	20' Utility Easement	Drainage Easement					UGE	Telephone Easement
Phase 1	Tax Map 206 Parcel 58.7		Water Easement 30'	20' Utility Easement	Drainage Easement		Maintenance Access	Water Main Easement		UGE	Telephone Easement
Phase 1	Tax Map 206 Parcel 58.8		Water Easement 30'	20' Utility Easement				Water Main Easement		UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 1	Water Easement 30'	20' Utility Easement	Drainage Easement	Slope Easement	Maintenance Access	Water Main Easement	Shared Driveway Easement	Existing UGE	Verizon Easement
Phase 2	Tax Map 206 Parcel 53	Lot 2	Water Easement 30'	20' Utility Easement	Drainage Easement		Maintenance Access		Dominant	UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 3	Water Easement 30'	20' Utility Easement		Slope Easement	Maintenance Access		Servient to Lot 2	UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 4	Water Easement 30'	20' Utility Easement		Slope Easement			Dominant	UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 5	Water Easement 30'	20' Utility Easement	Drainage Easement	Slope Easement	Maintenance Access		Servient to Lot 4	UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 6	Water Easement 30'	20' Utility Easement	Drainage Easement		Maintenance Access		Dominant/Servient to Lot 7	UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 7	Water Easement 30'	20' Utility Easement	Drainage Easement		Maintenance Access		Dominant/Servient to Lot 6	UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 8	Water Easement 30'	20' Utility Easement		Slope Easement				UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 9	Water Easement 30'	20' Utility Easement		Slope Easement				UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 10	Water Easement 30'	20' Utility Easement					Dominant/Servient to Lot 9	UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 11	Water Easement 30'	20' Utility Easement		Slope Easement			Dominant/Servient to Lot 10	UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 12	Water Easement 30'	20' Utility Easement		Slope Easement				UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 13	Water Easement 30'	20' Utility Easement		Slope Easement				UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 14	Water Easement 30'	20' Utility Easement	Drainage Easement					UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 15	Water Easement 30'	20' Utility Easement		Slope Easement				UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 16	Water Easement 30'	20' Utility Easement		Slope Easement				UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 17	Water Easement 30'	20' Utility Easement		Slope Easement				UGE	Telephone Easement
Phase 2	Tax Map 206 Parcel 53	Lot 18	Water Easement 30'	20' Utility Easement	Drainage Easement	Slope Easement	Maintenance Access			UGE	Telephone Easement

EXHIBIT C

SPECIAL REQUIREMENTS

The HOA shall act as necessary to ensure the following are adhered to by the Lot Owners, their family, guests and invitees, contractors and vendors.

1. Any work during construction across the Town of Carroll Water Main Line or wetlands shall be done in accordance with guidelines from the Town of Carroll Public Works Superintendent and shall be minimized to the extent feasible. The crossing of the watermain line and wetlands shall meet all NHDES requirements for water and wetland crossing.
2. Caution should be used when crossing existing watermain line on Tax Map 206, Parcel 58.7 for any and all construction activities. Bridging, approved by the Town of Carroll and, as applicable, NHDES, shall be installed prior to construction purposes crossings.
3. No trees or other plantings are allowed within the Town of Carroll water main easement on Tax Map 206, Parcels 58.7 and 58.8 and on Tax Map 206 Parcel 53 Lot 1– all as shown on the Easements Plan.
4. No vehicle weighing greater than 7,500 lbs. is allowed to cross the Town of Carroll Water Main line unless authorized by the Town of Carroll Public Works Superintendent.
5. Signage will be placed and maintained near the Town of Carroll Water line easement on Tax Map 206, Parcel 58.7 and Tax Map 206 Parcel 58.8 and on Tax Map 206 Parcel 53 Lot 1 giving public notice of the restrictions stated in paragraphs 1 through 4, above.
6. Once completed, the HOA shall be responsible for maintaining, repairing and replacing, as needed, the crossing improvements over the water main line on Tax Map 206, Parcel 58.7 Lot 9. Detail of the crossing improvement is on sheet 9 of 10 of Plan entitled: “Echo Lake Investments, LLC Echo Lake Subdivision Phase I, Carroll New Hampshire” dated May 2019, last revised 6/11/25.
7. The HOA shall be responsible for replenishing fire pond volumes with imported water from a tanker truck when the water in the pond(s) is/are depleted below volumes acceptable to the Town of Carroll Fire Chief. After 48 hours of not being at full level, the cost to bring the pond to the full level will be charged to and paid by the HOA, together with the associated costs for failure to maintain pond volume to its full level.
8. The fire pond/s and dry hydrant/s shall be installed inspected and working prior to any home installation or construction on Phase II. The dry hydrant/s shall be inspected quarterly and maintained as necessary to keep them in good working order. Test results will be promptly provided to the Twin Mountain Fire Department. Test Reports provided

shall include the following:

- (a) The procedure/activity performed (e.g., inspection, test, or maintenance),
- (b) Name address, email address and phone of the organization that performed the activity,
- (c) The required frequency of the activity,
- (d) The results and date of the activity, and
- (e) The name, address, email and phone number of the qualified contractor or owner, including the qualified personnel performing the activity.

9. It is declared that every driveway shall be burdened by a maintenance access easement granted herein to the HOA and the Town of Carroll to allow the HOA and Town of Carroll to go over the driveway/s by foot and vehicles to access abutting designated maintenance access easement or to access any Common Element to inspect, repair and maintain.
10. It is declared that every maintenance access easement is granted to the HOA and to the Town of Carroll to allow the grantees to go over the designated maintenance access easement , by men, vehicles and equipment, to access any Common Element to inspect, repair, maintain, and replace.
11. It is declared that every slope easement is granted to the HOA and to the Town of Carroll to allow the HOA and the Town of Carroll to inspect, repair and replace the slopes as needed to maintain the integrity of the Road.
12. It is declared that every drainage easement is granted to the HOA and the Town of Carroll to allow the grantees to inspect, repair and replace the ponds, drainage apparatus and improvements as needed to maintain proper functionality of the drainage and ponds.
13. It is declared that an easement over all Lots is granted to the HOA and the Town of Carroll to allow the grantees to inspect, repair and replace the Common Elements to maintain proper functionality of the drainage Common Elements. This easement right shall include the right to travel over the driveways and Lots by foot, machine and vehicles to perform these functions.
14. The fire hydrants installed on the Property may be inspected by the Town of Carroll Fire Department and/or Water Department at their discretion.
15. **SPECIAL RESTRICTIONS ON Tax Map 206 Parcel 58.7 and 58.8 LOTS 8 and 9.**

The homes built on Tax Map 206 Parcel 58.7 and Tax Map 206 Parcel 58.8 will have roof drip edges and infiltration trenches to manage storm runoff. The cost of maintaining, repairing, and replacing the roof drip edges and infiltration trenches shall be borne exclusively by the owners of these two lots, each lot owner responsible only for such improvements on its lot. The Association shall have the

authority to provide the necessary maintenance, replacement and repairing of these improvements if the lot owner are not providing the same as reasonably needed for the proper functioning of the roof drip edges and infiltration trenches to manage storm runoff, and cost incurred by the Association shall be a charge to the lot owner and if not paid within thirty (30) days of being invoiced, the Association may place a lien on the defaulting lot to secure payment of such costs, together with the costs of collection, including reasonable attorney fees and court costs. FURTHER, the deeds conveying these lots shall each contain a recitation of this covenant and restriction.

16. The size, location and configuration of any easement area referenced herein declared or granted hereby shall not be altered without the written consent of the Town of Carroll and the HOA, together with an amendment to the altered easement granted by the Lot owner affected and the HOA, and consented to by the Town of Carroll recorded in Coos County Registry of Deeds.

EXHIBIT D

SHARED DRIVEWAY EASEMENTS

WHEREAS, shared driveway easement areas are located as shown on the Common Elements Plan, and reference is made to that plan for more particular metes and bounds descriptions, and

WHEREAS, the shared driveway area located on Tax Map 206 Parcel 53 Lot 3 is servient to Tax Map 206 Parcel 53 Lot 2, and

WHEREAS, the shared driveway area located on Tax Map 206 Parcel 53 Lot 5 is servient to Tax Map 206 Parcel 53 Lot 4, and

WHEREAS, the shared driveway area on Tax Map 206 Parcel 53 Lot 6 is servient to Tax Map 206 Parcel 53 Lot 7 and the shared driveway area on Tax Map 206 Parcel 53 Lot 7 is servient to Tax Map 206 Parcel 53 Lot 6, and

WHEREAS, the shared driveway area on Tax Map 206 Parcel 53 Lot 9 is servient to Tax Map 206 Parcel 53 Lot 10 and the shared driveway on Tax Map 206 Parcel 53 Lot 10 area is servient to Tax Map 206 Parcel 53 Lot 9.

NOW, therefore, the Declarant covenants and declares and grants the right and easement in and over the shared driveway easement areas as described above located on the servient lots to and for the non-exclusive use of the owners of dominant lot and their family members, guests, invitees, and to the servient lot owner's successor and assigns, to use the shared driveway easement areas for the purpose of passage by foot or vehicle and for driveway use to and from Solar Spring Circle over the servient lot to and from the dominant lot, subject to the following terms and limitations:

2. The owner of the respective servient lot, and its family members, guests, invitees, successors and assigns, together with the HOA, emergency responders and the Town of Carroll, and their agents, successors and assigns, shall have the non-exclusive right to use the Easement Area for passage by foot or vehicle and for driveway use to and from Solar Spring Circle to and the dominant lot and shall have the exclusive right to park vehicles in the driveway in a manner that does not prevent passage of vehicles to and from the dominant lot to travel over the driveway. No vehicle which came from or drove or whose owners or occupants are going to the dominant lot shall park vehicles on the servient lot.
3. Each lot owner shall have the right, exercisable in its sole discretion, to build, install, maintain, repair, rebuild, and replace a paved or gravel driveway and to install, build, maintain and replace underground utility lines under the Easement Area, and to have right to continue to go onto, under, over, and into the Easement Area and to otherwise

use the easement area for any purpose not inconsistent with the rights, limitations and easement granted herein.

4. The rights and obligations granted herein (a) shall run with the land and shall be binding on the successor and assigns of the undersigned, (b) may not be modified or amended absent a dated writing signed by both parties (or, as applicable, their successor and assigns), the HOA and the Town of Carroll, (c) may be enforced by affected lot owners, the HOA, or the Declarant, (d) are construed as a New Hampshire contract and shall be interpreted by New Hampshire law, and if a court of competent jurisdiction voids any term contained herein, the remaining terms shall remain in full force and effect, and
5. All maintenance, repair and replacement costs expended on the shared driveway easement areas shall be borne by the owners of the servient and dominant lots for the affected two lots as follows: each lot being responsible for 50% of the maintenance, repair and replacement cost expended for that portion of the shared driveway that is used by both servient and dominant lot owners, but the servient lot owners shall be responsible for 100% of the cost for the lot area that is not shared in use. Maintenance costs shall include, but not be limited to costs for landscaping, snow plowing, filling and grading and repaving the Easement Area, as may be needed for safe passage over the Easement Area or as may be required by the Town of Carroll or insurance company providing insurance to either of the two properties
6. Owners of the respective servient and dominant lots sharing a shared driveway shall maintain insurance coverage for personal injury and property damage incurred by users of the Easement Area, which insurance shall be a rider on their respective homeowner's insurance policy.
7. This agreement may be enforced by Declarant and its successors and assigns, by the HOA and by the Owners of the respective servient and dominant lots sharing a shared driveway and by their successors and assigns.
8. Reasonable legal fees and costs shall be awarded in any litigation to enforce this agreement shall be awarded to the prevailing party, together with such damages as are allowed hereunder or allowed by a court of competent jurisdiction.
9. Owners of the respective servient and dominant lots sharing a shared driveway and their family members, guests and invitees, and their successors and assigns shall not undertake any actions (including parking vehicles or trailers or storing any items within the easement area) that would interfere or obstruct access to/from the Easement Area or obstruct or interfere with the use of the Easement Area as a shared driveway for all lawful purposes.
10. The rights and easement declared herein are restrictive covenants appurtenant and running to both the servient and dominant lots sharing a shared driveway and shall be

binding upon the current and all future owners of record of these lots. The doctrine of a merger shall not invalidate the rights and easement rights declared hereby as this instrument is being recorded with the specific intent of binding the future owners of this record.

11. The rights and easements granted herein shall run with and be appurtenant to the Lots on which the shared driveway easements area are located.

EXHIBIT E

SLOPE EASEMENT

WHEREAS, Slope Easements as shown on the Easements Plan as located on Tax Map 206 Parcel 53 Lot 3, Tax Map 206 Parcel 53 Lot 4, Tax Map 206 Parcel 53 Lot 5, Tax Map 206 Parcel 53 Lot 8, Tax Map 206 Parcel 53 Lot 9, Tax Map 206 Parcel 53 Lot 11, Tax Map 206 Parcel 53 Lot 12, Tax Map 206 Parcel 53 Lot 13, Tax Map 206 Parcel 53 Lot 15, Tax Map 206 Parcel 53 Lot 16, Tax Map 206 Parcel 53 Lot 17, Tax Map 206 Parcel 53 Lot 18, Tax Map 206 Parcel 58, and Tax Map 206 Parcel 58.1.

NOW, therefore, the Declarant covenants and declares and grants the right and easement in and over the slope easement areas as described above located on the above-referenced plan to the HOA and its successor and assigns to allow the HOA to construct, install, maintain, replace, repair slopes, embankments, rip rap or other man-made improvements within the Slope Easement Area necessary to provide adequate lateral support of those portions of the interior roadways shown on the Common Elements Plan abutting the Easement Area.

This Slope Easements shall be subject to the following:

- [1] The HOA and its successor and assigns, and the Town of Carroll shall have the right to pass and repass by foot, motor vehicle or machine over said the Slope Easement Areas to excavate, trench, fill and backfill within the Easement Area to accomplish this easement's scope and purpose, provided that any road or land disturbed by such activity shall be restored by the HOA to substantially the condition existing at the time of entry. The Town of Carroll, however, is not obligated to perform any inspection, maintenance, repair or replacement.
- [2] The HOA, its successors, and assigns, covenant that it will not alter, erect, or maintain any building or other improvement, including trees and landscaping, upon the above-described Slope Easement Area that may unreasonably interfere with or endanger the above-granted rights and easement or the operation and maintenance thereof, and that the HOA shall the right to cause to have removed any such building or improvement, trees, including landscaping, that may be wholly or partly within the above-described Easement Area. The HOA may, but is not obligated to, charge to the Lot owner upon which the above-described Slope Easement Lies the expense of such remediation work if remediation work is necessitated by the acts or omission of the Lot owner.
- [3] The right and easements granted herein shall run with and be appurtenant to the Lot on which the Slope Easements are located.

EXHIBIT F

DRAINAGE and MAINTENANCE ACCESS EASEMENT

WHEREAS, drainage easements are located on Tax Map 206 Parcel 58, Parcel 58.3, Parcel 58.6, Parcel 58.7, Tax Map 206 Parcel 53 Lot 1, Tax Map 206 Parcel 53 Lot 2, Tax Map 206 Parcel 53 Lot 5, Tax Map 206 Parcel 53 Lot 6, Tax Map 206 Parcel 53 Lot 7, Tax Map 206 Parcel 53 Lot 14 and Tax Map 206 Parcel 53 Lot 18 as shown on the Easements Plan, and

WHEREAS, maintenance access easements are located on Tax Map 206 Parcel 53 Lot 1, Tax Map 206 Parcel 53 Lot 2, Tax Map 206 Parcel 53 Lot 3, Tax Map 206 Parcel 53 Lot 5, Tax Map 206 Parcel 53 Lot 6, Tax Map 206 Parcel 53 Lot 7, Tax Map 206 Parcel 53 Lot 18, Tax Map 206 Parcel 58, and Tax Map 206 Parcel 58.7 as shown on the Easements Plan.

NOW, therefore, the Declarant covenants and declares and grants the right and easement in and over the drainage easement areas and the maintenance access easement area as described above located on the above-referenced plan to the HOA and to the Town of Carroll and to their respective successor and assigns to allow the HOA and the Town of Carroll (without Town of Carroll having the commensurate obligation to do so) to construct, install, maintain, replace, repair man-made improvements within the Drainage Easement area as shown on the Common Elements Plan abutting the Easement Area and to travel over the maintenance access areas for such purpose.

- [1] The Drainage and Maintenance Easements shall be subject to the following:
The scope and purpose of this grant of Drainage Easement is to allow the HOA and the Town of Carroll to travel over the maintenance access easements by men and machine to access the Drainage Easements and Pond area to install, maintain, replace, repair, upkeep, and operate the Drainage Easements and Ponds and the ancillary pipes, conduits, forebays, inverts, culverts, outlets, rip rap, and other improvements and apparatus necessary or advisable to provide and maintain the proper function of the drainage easement areas and ponds.
- [2] The HOA, its successor and assigns, and the Town of Carroll shall have the right and easement to pass and repass by foot, motor vehicle and equipment, or machine over said the Drainage Easement Areas and the Maintenance Access Easements as shown on the Common Elements Plan, the driveways for each lot, including shared driveways, and over the Lots as necessary to access, inspect, repair, maintain and replace the drainage areas and their ancillary apparatus and improvements, and to excavate, trench and backfill within the Drainage Easement Areas to accomplish this easements' scopes and purposes, provided that land disturbed by such activity shall be restored by the HOA to substantially the condition existing at the time of entry. The Town of Carroll, however, is not obligated to perform any inspection, maintenance, repair or replacement.

- [3] The HOA, its successors, and assigns, covenant that it will not allow trees, plantings or improvements within the Drainage Easement Areas that may unreasonably interfere with or endanger the above-granted rights and easement or the operation and maintenance thereof, and that the HOA may cause to have removed any such building or improvement, including trees and landscaping, that may be wholly or partly within the above-described Easement Area at the expense of the then owner of the lot upon which the above-described easement lies if such improvements were caused by act or omission of the Lot owner or its predecessor.
- [4] The right and easements granted herein shall run with and be appurtenant to the Lot on which the Drainage Easements are located.

EXHIBIT G

Phasing Chart

Phase	Tax Map/Parcel
Phase 1	206/58
Phase 1	206/58.1
Phase 1	206/58.2
Phase 1	206/58.3
Phase 1	206/58.4
Phase 1	206/58.5
Phase 1	206/58.6
Phase 1	206/58.7
Phase 1	206/58.8

Lot Identification Chart

Phase	Tax Map/Parcel	Plan Lot #
Phase 2	206/53	Lot 1
Phase 2	206/53	Lot 2
Phase 2	206/53	Lot 3
Phase 2	206/53	Lot 4
Phase 2	206/53	Lot 5
Phase 2	206/53	Lot 6
Phase 2	206/53	Lot 7
Phase 2	206/53	Lot 8
Phase 2	206/53	Lot 9
Phase 2	206/53	Lot 10
Phase 2	206/53	Lot 11
Phase 2	206/53	Lot 12
Phase 2	206/53	Lot 13
Phase 2	206/53	Lot 14
Phase 2	206/53	Lot 15
Phase 2	206/53	Lot 16
Phase 2	206/53	Lot 17
Phase 2	206/53	Lot 18

EXHIBIT H

Inspection and Maintenance Manual for surface and stormwater management system

INSPECTION AND MAINTENANCE MANUAL FOR ECHO LAKE INVESTMENTS, LLC TWIN PEAKS VILLAGE PHASE I & II US ROUTE 3, CARROLL, NEW HAMPSHIRE

**June 2023
(Revised JUNE 2024)**

Introduction

This document is intended to provide a unified procedure for the party(ies) responsible for inspecting and maintaining the stormwater management device(s) that are located within the proposed development (see attached Location Plan for the device locations). The activities specified in this plan are required for continued compliance with the New Hampshire Department of Environmental Services (DES) Alteration of Terrain Program and associated permit that has been issued for this project.

Responsible Parties

The ultimate responsibility for complying with this plan rests with the owners of the Property.

Owner's Name: **ECHO LAKE INVESTMENTS, LLC, c/o Syed Nuruzzaman, (617)-909-8310**

*Once lots have been sold, the responsible party will become the Home Owner's Association for the development. In the instance that the HOA is dissolved or otherwise discontinued, or if it agreed by vote that they relinquish the responsibility for I&M of stormwater practices, the responsibility will transfer to the individual home owners, joint and severally per Env-Wq 1507.07(h)(2).

Homeowner's Association: **TWIN PEAKS VILLAGE HOMEOWNER'S ASSOCIATION, c/o Syed Nuruzzaman, (617)-909-8310**

Prior to transfer of ownership to another entity, the existing owner shall notify DES in writing of such transfer.

Parties assigned to complete inspection and maintenance tasks are presented in the following table:

DEVICE	TASK	PARTY RESPONSIBLE
Structural Stormwater Devices		
Forebays	Inspection	OWNER
	Maintenance	OWNER
	Reporting	OWNER
Wet Pond	Inspection	OWNER
	Maintenance	OWNER
	Reporting	OWNER
Infiltration Ponds	Inspection	OWNER
	Maintenance	OWNER
	Reporting	OWNER
Filtration Practices	Inspection	OWNER
	Maintenance	OWNER
	Reporting	OWNER
Culverts	Inspection	OWNER
	Maintenance	OWNER
	Reporting	OWNER

Frequency of Activities

The best time to perform inspections is during the onset of rain. To the extent practicable inspections should be timed to coincide with moderate storms that do not have the potential for severe (thunderstorms, etc) precipitation. The frequency of inspection and maintenance will vary by intensity of use; however, the following shall serve as the minimum inspection frequency:

- Pretreatment measures should be inspected and cleaned at least twice annually.
- Structural Devices: Spring and fall
- Road side ditch, treatment swales, and surface filter ponds:
Twice annually, and following any rainfall event exceeding 2.5 inches in a 24-hour period. At least once annually, the system should be inspected for a drawdown time of 72 hours.
- Pretreatment measures (Sediment forebay) should be inspected and cleaned at least twice annually.
- If the surface filter pond does not drain within 72 hours following a rainfall event, then a qualified professional should assess the condition of the pond to determine measures required to restore infiltration function, including but not limited to removal of accumulated sediments or reconstruction of the pond bottom.

- Periodic mowing of embankments
- Removal of woody vegetation from fill embankments
- Removal of debris from outlet structures
- Removal of accumulated sediment
- Inspection and repair of embankments, inlet and outlet structures, and appurtenances
- Trash and debris shall be removed at each inspection.
- Filtration Systems: For more detailed information – Owner must follow NH Stormwater Manual's specific installation and maintenance procedures. At a minimum, twice annually, and following any rainfall event exceeding 2.5 inches in a 24 hour period. At least once annually, the system should be inspected for a drawdown time of 72 hours.
- If there is a significant ponding of water within the Filtration Systems after 72 hours following a rainfall event, then a qualified professional should assess the condition of the filter media and subdrain to determine measures required to restore infiltration function, including but not limited to, the removal of accumulated sediments or reconstruction of the filter media.
- Vegetation should be inspected at least annually, and maintained in a healthy condition, including pruning. Filter media should be replaced if vegetation is replaced.
- Do not place the Filtration Systems or Infiltration Ponds into service until the BMP has been constructed and its contributing areas have been fully stabilized.
- To prevent degradation of the infiltration function:
 - Do not discharge sediment-laden waters from construction activities (runoff, water from excavations) to the ponds during any stage of construction.
 - Do not traffic or compact exposed soil surface within the area of the ponds with construction equipment. Perform excavation for the construction of this BMP with equipment positioned outside the limits of this system.

Maintenance frequencies will be determined based upon the results of the inspections and if specific maintenance thresholds are observed to have been crossed during inspections.

All inspection activities shall be recorded on the appropriate attached Inspection Form. One form shall be used for each stormwater device.

Records

A record of inspection and maintenance activities shall be recorded on the Inspection and Maintenance Log presented below. Records of Inspection forms and Inspection and Maintenance Logs shall be made available to DES upon request.

Year

Stormwater BMP Inspection and Maintenance Log

**FOR
ECHO LAKE
INVESTMENTS,
LLC ECHO
LAKE
SUBDIVISION
PHASE II
US ROUTE 3, CARROLL, NEW
HAMPSHIRE**

[illegible]

[illegible]

Forebays Inspection Form

FOR
ECHO LAKE
INVESTMENTS,
LLC ECHO
LAKE
SUBDIVISION
PHASE II
US ROUTE 3, CARROLL, NEW
HAMPSHIRE

BMP Name

Date of today's inspection ___/___/___ Inspector Name _____
Date of last inspection (of this BMP) ___/___/___

Recent Weather history

Storm date(s)	Storm duration	Rainfall amount	Did runoff occur?

Today's Weather _____

INSPECTION AREAS	LOOK FOR	CIRCLE ONE		IF YES
Outlet(s) from BMP				
	Turbid Discharge?	Y	N	Follow turbidity upgradient to source and stabilize
	Rills present or crest not level?	Y	N	Patch/grade to ensure discharge is not concentrated and re-vegetate.
Banks				
	Erosion?	Y	N	Reshape, seed and apply erosion control matting
Device Floor				
	Sediment accumulations?	Y	N	Inspect upstream devices and landscape to determine source and stabilize. Rake or shovel out when sediment is within 1' of Sediment Trap outlet weir elevation or is 2" deep for Treatment Swales.

	Area of organic mat exceeds area of living vegetation?	Y	N	Hand rake, scarify, or aerate.
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INSPECTION AREAS	LOOK FOR	CIRCLE ONE		IF YES
	Woody growth in treatment swale?	Y	N	Cut at least annually to a height of 4"
Invasive Species				
	Non-native plants growing on land surfaces?	Y	N	Confirm species, carefully destroy and dispose of plants. Re-inspect within one growing season.
	Non-native plants growing in water?	Y	N	Confirm species, carefully destroy and dispose of plants. Re-inspect within one growing season.

Infiltration Pond Inspection Form

FOR

ECHO LAKE INVESTMENTS,
LLC ECHO LAKE SUBDIVISION

PHASE II

US ROUTE 3, CARROLL, NEW HAMPSHIRE

52

BMP Name

Date of today's inspection ___/___/___ Inspector Name _____ Date of last inspection (of this BMP) ___/___/___

Recent Weather history

Storm date(s)	Storm duration	Rainfall amount	Did runoff occur?

Today's Weather _____

OUTLET(S) FROM BMP				
	Turbid Discharge?	Y	N	Follow turbidity upgradient to source and stabilize
	Scour?	Y	N	Replace scour apron to original plan dimensions, may need to increase D ₅₀ stone size
	Clogged weir	Y	N	Remove clog and debris in vicinity of outlet
Banks				
	Erosion?	Y	N	Reshape, seed and apply erosion control matting
	Large areas of sparse growth above waterline?	Y	N	Take soil sample and apply slow release amendments (N, K) per results
	Settling?	Y	N	Consult Dam O&M plan if applicable, otherwise fill void with specified material, compact, and vegetate

	Woody growth on dam faces?	Y	N	Remove, seed and apply erosion control matting
Check Dams				
	Sediment accumulated to 2/3 height of checkdam?	Y	N	Clean out
	Falling down?	Y	N	Reconstruct checkdam at spacing per plans but with flatter downstream slope
	Spillway is not centered?	Y	N	Fill in scour void and create "dent" in center
		Y	N	
Floor				
	Trash or debris accumulations?	Y	N	Remove all trash at every inspection
	Does system drain in 72 hours?	Y	N	Seek a qualified professional to assess the condition to determine measures required to restore filtration function, including but not limited to removal of accumulated sediments.
	Is grass covering the 1" gravel debris screen?	Y	N	Remove grass and restore 1" of crushed gravel.
Inlet(s) to BMP				
	Scour?	Y	N	Replace scour apron to original plan dimensions, may need to increase D ₅₀ stone size and/ or add check dam
	Sediment accumulation?	Y	N	Look at pretreatment device and clean once sediment occupies 50% of volume, then clean out inlet pipe to main device

Wet Pond BMP Inspection Form

BMP Name _____

ECHO LAKE INVESTMENTS,
LLC ECHO LAKE SUBDIVISION
PHASE II

US ROUTE 3, CARROLL, NEW HAMPSHIRE

Date of today's inspection ___/___/___ Inspector Name _____ Date of last inspection (of this BMP) ___/___/___

Recent Weather history

Storm date(s)	Storm duration	Rainfall amount	Did runoff occur?

Today's Weather _____

INSPECTION AREAS	LOOK FOR	CIRCLE ONE		IF YES
Outlet(s) from BMP				
	Turbid Discharge?	Y	N	Follow turbidity upgradient to source and stabilize
	Scour?	Y	N	Replace scour apron to original plan dimensions, may need to increase D ₅₀ stone size
	Clogged pipe/weir	Y	N	Remove clog and debris in vicinity of outlet
	Seepage	Y	N	If Dam, consult O&M plan otherwise attempt to find source with dye and plug with bentonite
Banks				
	Erosion?	Y	N	Reshape, seed and apply erosion control matting
	Large areas of sparse growth above waterline?	Y	N	Take soil sample and apply slow release amendments(N, K) per results
	Large areas below waterline are slumping?	Y	N	Either establish appropriate wetland vegetation or apply stone
	Settling?	Y	N	Consult Dam O&M plan if applicable, otherwise fill void with specified material, compact, and vegetate
	Woody growth on dam faces?	Y	N	Remove per Dam O&M
Check Dams				
	Sediment accumulated to	Y	N	Clean out

	2/3 height of checkdam?			
	Falling down?	Y	N	Reconstruct checkdam at spacing per plans but with flatter downstream slope
	Spillway is not centered?	Y	N	Fill in scour void and create "dent" in center
		Y	N	
Floor				
	Sediment accumulations?	Y	N	Rake or shovel out when sediment occupies 50% of volume of device (10% for Detention ponds, 2" deep for Treatment swales)
	Woody growth in treatment swale?	Y	N	Mow in spring and fall to a height of 4"
Inlet(s) to BMP				
	Scour?	Y	N	Replace scour apron to original plan dimensions, may need to increase D ₅₀ stone size and/ or add check dam
	Sediment accumulation?	Y	N	Look at pretreatment device and clean once sediment occupies 50% of volume, then clean out inlet pipe to main device

Culverts

BMP Name

Inspection

Form FOR

ECHO LAKE INVESTMENTS, LLC
TWIN PEAKS VILLAGE PHASE I
& II
US ROUTE 3, CARROLL, NEW HAMPSHIRE

Date of today's inspection __/__/__ Inspector Name _____ Date of last inspection (of this BMP) __/__/__

Recent Weather history

Storm date(s)	Storm duration	Rainfall amount	Did runoff occur?

Today's Weather _____

56

INSPECTION AREAS	LOOK FOR	CIRCLE ONE		IF YES
Culverts				
	Sediment or debris at Culvert inlet or outlets?	Y	N	Remove sediment. Inspect culvert and hdpe debris cage and clean if necessary

**Filtration
System
Inspection
Form
FOR**

ECHO LAKE INVESTMENTS, LLC
TWIN PEAKS VILLAGE PHASE I
& II

US ROUTE 3, CARROLL, NEW HAMPSHIRE

BMP Name

Date of today's inspection __/__/__ Inspector Name _____ Date of last inspection (of this BMP) __/__/__

Recent Weather history

Storm date(s)	Storm duration	Rainfall amount	Did runoff occur?

Today's Weather _____

INSPECTION AREAS	LOOK FOR	CIRCLE ONE		IF YES
Ponding Stage Area				
	Trash or debris accumulations?	Y	N	Remove all trash at inspection and vacuum if necessary.
	Does system fail to drain in 72 hours?	Y	N	Seek a qualified professional to assess the condition and determine if measures required to restore filtration function are necessary. These measures can include but are not limited to removal of accumulated sediments or reconstruction of the filter.
	Ponding?	Y	N	
Vegetation (Bio-Retention BMPs)				
	Signs of disease?	Y	N	Treat as necessary including spraying for bugs/insects.
	Signs of distress or lack of growth?	Y	N	Replace tree and filter media. Tree may have grown too large.
	Dead Vegetation?	Y	N	Replace vegetation and filter media
Invasive Species				
	Non-native plants growing on surfaces?	Y	N	Confirm species, carefully destroy and dispose of plants. Re-inspect within one growing season.

Control of Invasive Plants Guidance Manual

ECHO LAKE INVESTMENTS,
LLC ECHO LAKE SUBDIVISION
PHASE II
US ROUTE 3, CARROLL, NEW HAMPSHIRE

Invasive Plants (as provided by the NHDES)

Invasive plants are introduced, alien, or non-native plants, which have been moved by people from their native habitat to a new area. Some exotic plants are imported for human use such as landscaping, erosion control, or food crops. They can also arrive as “hitchhikers” among shipments of other plants, seeds, packing material, or fresh produce. Some exotic plants become invasive and cause harm by:

- becoming weedy and overgrown;
- killing established shade trees;
- obstructing pipes and drainage systems;
- forming dense beds in water;
- lowering water levels in lakes, streams, and wetlands;
- destroying natural communities;
- promoting erosion on stream bank and hillsides; and
- resisting control except by hazardous chemical.

See the attached documentation by the “University of New Hampshire Cooperative Extension” titled “Methods for Disposing Non-Native Invasive Plants”. This document is to be used as guidance for removing invasive plants. The owner and the maintenance supervisor should take necessary measure to prevent the spread of invasive plants in accordance with RSA 430:53 and AGR 3800 from the New Hampshire Regulations.

Inspection & Maintenance Stormwater Locations Plan

